
CITY OF GALLATIN COUNCIL MEETING

March 07, 2023

6:00 pm

Dr. J. Deotha Malone
Council Chambers

- Call to Order – Mayor Brown
- Invocation
- Pledge of Allegiance– Councilman Hayes
- Roll Call: Carter – Fann – Fennell – George – Hayes – Jouvence – Vice Mayor Love
- Approval of Minutes: February 07, 2023 City Council Meeting
- Public Recognition on Agenda-Related Items
- Mayor's Comments

AGENDA

1. **Public Hearing Ordinance No. O2302-17** An ordinance of the City of Gallatin, Sumner County, Tennessee, approving an amendment to the Preliminary Master Development Plan for Goodview Commons (F.K.A. Maddux Commercial Park) on a portion of a 3.16 +/- acre lot, located west of GreenLea Boulevard and south of SR386; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Jouvence)**
2. **Public Hearing Ordinance No. O2302-18** An ordinance of the City of Gallatin, Sumner County, Tennessee, approving an Amended Preliminary Master Development Plan and Revised Final Master Development Plan for Enoch Hills, Phase 3 on a 30.88 +/- acre parcel, located north of Hartsville Pike and west of Woodlands Drive, authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances, providing for severability, and providing for an effective date. **(Vice Mayor Love)**
3. **Second Reading Ordinance No. O2212-71** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 23.28 +/- acres from the R-15 Medium Density Residential District to the MRO-Multiple Residential and Office District and 2.00 +/- acres from the R-10 Medium Density Residential District to the MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for Laurelwood Park, located south of Drivers Lane and east of Lorraine Drive; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilwoman George)**
4. **Second Reading Ordinance No. O2302-15** Ordinance appropriating \$7,575.40 for insurance recovery from fire suppression operations at 155 East Main Street (new courthouse under construction) on August 7, 2022. **(Councilman Carter)**
5. **Second Reading Ordinance No. O2302-16** Ordinance appropriating \$3,500.00 from Project Woolhawk for Planning Department office renovation expenses **(Councilman Hayes)**
6. **Second Reading Ordinance No. O2302-19** Ordinance amending Gallatin Municipal Code Chapter 2, Article I, Section 2-5 Acceptance of Gratuities **(Councilwoman George)**
7. **First Reading Ordinance No. O2303-20** Ordinance appropriating \$1,400,000.00 for construction of the City of Gallatin Police Department Gun Range Facility **(Councilman Fennell)**

8. **First Reading Ordinance No. O23Ø3-21** Ordinance amending Gallatin Municipal Code Chapter 17, Article II, Section 17-59, and Chapter 17, Article III, Section 17-180 Water and Sewer Rates **(Councilwoman Love)**
9. **Resolution No. R23Ø2-13** A resolution of the City Council of the City of Gallatin, Sumner County, Tennessee authorizing the property owner and applicant to submit an application for annexation into the City of 230.34 +/- acres east of Lock 4 Road and north of Peach Valley Road **(Councilman Jouvence)**
10. **Resolution No. R23Ø2-26** Resolution appointing Interim Director of Human Resources and setting compensation rate **(Councilman Fann)**
11. **Resolution No. R23Ø3-27** Resolution appointing Ronald "Cole" Shepherd to the Historic District Commission **(Councilman Fann)**

- Other Business
- Public Recognition on Non-Agenda-Related Items
- Adjourn

The City of Gallatin City Council Meeting

Tuesday, February 7, 2023

The Gallatin City Council met in regular session on Tuesday, February 7, 2023 in the Dr. J. Deotha Malone Council Chambers at Gallatin City Hall. Mayor Paige Brown called the meeting to order at 6:01 P.M.

Mayor Brown announced there would not be a live Facebook feed due to a system error.

Councilman Steven Carter led the opening prayer and Councilwoman Eileen George led the pledge of allegiance.

City Recorder Connie Kittrell called the roll call and the following were present:

Present:

Mayor Paige Brown
Vice Mayor Lynda Love
Councilman Steven Carter
Councilman Steve Fann
Councilman Shawn Fennell
Councilwoman Eileen George
Councilman Craig Hayes
Councilman Pascal Jouvence

Absent:

Department Heads and Others Present:

Chuck Stuart, Building Official
Susan High-McAuley, City Attorney
Nick Tuttle, City Engineer
Bill McCord, City Planner
Connie Kittrell, City Recorder
James Fenton, EDA Director
Rachel Nichols, Finance Director

Jeff Beaman, Fire Chief
Connie Flood, H.R. Director
Jennifer LeFevre, I.T. Director
David Brown, Parks & Rec. Director
Don Bandy, Police Chief
David Kellogg, Public Utilities Director
Richard Depriest, Public Works Director

Approval of Minutes

Mayor Brown presented the January 3, 2023 and January 17, 2023 City Council minutes for approval.

Councilwoman George made motion to approve; Vice Mayor Love seconded. Motion carried with 7 ayes and 0 nays.

Council agreed to recognize Gallatin Firefighters.

Fire Chief Jeff Beaman recognized the following firefighters:

- Doug Hall – Firefighter of the Year A Shift
- Owen Donnell – Firefighter of the Year B Shift
- Jason Parks – Fire Officer of the Year
- Caleb Carter – Tommy Dale Training Award
- Kevin Boone – Firefighter of the Year C Shift
- Jason Parks – Fire Professional of the Year

Gallatin Department of Electricity Director Mark Kimball was present to address the recent power outages. Mr. Kimball explained the electric needs for the citizens of Gallatin and the rolling blackouts from TVA.

Council discussed.

Public Recognition on Agenda-Related Items

Mayor Brown opened public recognition on agenda-related items.

- Shirley Camp of 118 Wayne Street spoke in opposition to Laurelwood Park Development.
- Amber Johnson of 169 Drivers Lane spoke in opposition to Laurelwood Park Development.
- Doug Stinson of 126 Lorraine Drive spoke in opposition to Laurelwood Park Development.

- James Barrett of 114 Wayne Street spoke in opposition to Laurelwood Park Development.
- Randy Shivers of 169 Drivers Lane spoke in opposition to Laurelwood Park Development.
- Mary Genung of 1100 Lock 4 Road spoke about the impacts of all the recent growth.

With no one else wishing to speak, public recognition on agenda-related items was closed.

Mayor's Comments

Mayor Brown announced the following events:

- Coffee & Connect with Jenna Maddox and Gallatin Parks and Recreation at Black Press Coffee Shop on February 8, 2023.
- Night to Shine at Northfield Church on February 10, 2023.
- Stay Warm Shelter at Unlimited Potential Community Life Center Gym on February 17, 2023.
- President's Day on February 20, 2023.
- Good Morning Gallatin: County Update with Sumner County Mayor John Isbell at Hampton Inn on February 24, 2023.

Mayor Brown presented the following road closure applications:

- Gallatin Shamrock Run on March 11, 2023.

Councilman Fennell made motion to approve; Councilman Hayes seconded. Motion carried with 7 ayes and 0 nays.

- Farm to Table on September 23, 2023.

Councilman Hayes made motion to approve; Vice Mayor Love seconded. Motion carried with 7 ayes and 0 nays.

- Gallatin Christmas Parade on December 9, 2023.

Councilwoman George made motion to approve; Vice Mayor Love seconded.
Motion carried with 7 ayes and 0 nays.

Agenda

Council agreed to move agenda Item #2.up to Item #1.

2. Ordinance #O2301-8 - Public Hearing

Councilman Jouvence presented this ordinance of the City of Gallatin, Sumner County, Tennessee, approving a Preliminary Master Development Plan for Griffin Farm North, a mixed-use development, on a 40.26 (+/-) acre portion of a parcel (P/O Tax Map 125, Parcel 019.00), located south of Long Hollow Pike and east of GreenLea Boulevard; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinance; providing for severability, and providing for an effective date.

Mayor Brown opened public hearing.

- Todd Alexander of 217 Strange Circle spoke in opposition of this development.

With no one else wishing to speak, public hearing was closed.

1. Ordinance #O2301-8 - First Reading

Councilman Jouvence presented this ordinance of the City of Gallatin, Sumner County, Tennessee, approving a Preliminary Master Development Plan for Griffin Farm North, a mixed-use development, on a 40.26 (+/-) acre portion of a parcel (P/O Tax Map 125, Parcel 019.00), located south of Long Hollow Pike and east of GreenLea Boulevard; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Councilman Jouvence made motion to discuss; Vice Mayor Love seconded.
Council discussed.

City Engineer Nick Tuttle provided additional information.

Developer representative Marty Cook stated a traffic study would be provided as the city requires in the ordinance.

Councilman Jouvence made motion to defer until they receive the results of the traffic study. Motion failed due to lack of second.

Councilwoman George made motion to approve; Councilman Hayes seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Love	No
Councilman Carter	No
Councilman Fann	Yes
Councilman Fennell	No
Councilwoman George	Yes
Councilman Hayes	Yes
Councilman Jouvence	No

Motion failed with 3 ayes and 4 nays.

3. Ordinance #O2212-69 - Second Reading

Councilman Jouvence presented this ordinance of the City of Gallatin, Sumner County, Tennessee, approving a Preliminary Master Development Plan for Primrose, a child care facility, on 3.91 (+/-) acre portion of a parcel (P/O Tax Map 125, Parcel 019.00), located north of SR 386 and east of GreenLea Boulevard; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinance; providing for severability, and providing for an effective date.

Councilman Jouvence made motion to approve; Councilman Hayes seconded. Motion carried with 7 ayes and 0 nays.

4. Ordinance #O2212-70 - Second Reading

Councilman Hayes presented this ordinance of the City of Gallatin, Sumner County, Tennessee, approving a Preliminary Master Development Plan for Station Commons on three parcels totaling 31.57 (+/-) acres, located east of Big Station Camp Boulevard, south of Highway 386, and north of the CSX railroad; authorizing the revision to be indicated on the Official Zoning Atlas; repealing

conflicting ordinances; providing for severability, and providing for an effective date.

Councilman Hayes made motion to approve; Councilman Fennell seconded.
Motion carried with 7 ayes and 0 nays.

5. Ordinance #O2301-3 – Second Reading

Councilman Hayes presented this ordinance appropriating \$70,000 from Project Woolhawk for Building Codes Department expenses.

Councilman Hayes made motion to approve; Councilman Fennell seconded.
Motion carried with 7 ayes and 0 nays.

6. Ordinance #O2301-4 – Second Reading

Councilman Carter presented this ordinance appropriating \$950 from insurance recovery account to Public Works building maintenance and repair.

Councilman Carter made motion to approve; Councilman Jouvence seconded.
Motion carried with 7 ayes and 0 nays.

7. Ordinance #O2301-5 – Second Reading

Councilman Carter presented this ordinance appropriating funds received in the amount of \$4,989.00 from insurance claims for damage to signal.

Councilman Carter made motion to approve; Councilman Jouvence seconded.
Motion carried with 7 ayes and 0 nays.

Councilman Carter left the meeting.

8. Ordinance #O2301-9 – Second Reading

Councilwoman George presented this ordinance appropriating \$110,000 for the Hitchcock Berm project.

Councilwoman George made motion to approve; Vice Mayor Love seconded.
Motion carried with 6 ayes and 0 nays.

Councilman Carter reentered the meeting.

9. Ordinance #O2212-71 - First Reading

Councilwoman George presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 23.28 (+/-) acres from the R-15 Medium Density Residential District to the MRO-Multiple Residential and Office District and 2.00 (+/-) acres from the R-10 Medium Density Residential District to the MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for Laurelwood Park, located south of Drivers Lane and east of Lorraine Drive; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Councilwoman George made motion to approve; Councilman Hayes seconded.

Council discussed.

Developer Representative Cal Gentry explained the traffic and drainage concerns.

Councilman Jouvence made motion to defer until next committee meeting.
Motion failed due to lack of second.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Love	No
Councilman Carter	Yes
Councilman Fann	Yes
Councilman Fennell	Abstain
Councilwoman George	Yes
Councilman Hayes	Yes
Councilman Jouvence	No

Motion carried with 4 ayes, 2 nays and 1 abstention.

10. Ordinance #O2302-10 - First Reading

Vice Mayor Love presented this ordinance appropriating \$2,141.00 in Drivers Training Grant Funding.

Vice Mayor Love made motion to approve; Councilwoman George seconded. Motion carried with 7 ayes and 0 nays.

11. Ordinance #O2302-11 - First Reading

Councilman Fennell presented this ordinance appropriating \$787.20 from revenue received for insurance recovery for Parks and Recreation vehicle repair.

Councilman Fennell made motion to approve; Councilman Jouvence seconded. Motion carried with 7 ayes and 0 nays.

12. Ordinance #O2302-12 - First Reading

Councilman Fann presented this ordinance appropriating \$36,656.29 from revenue received from insurance for damaged vehicle.

Councilman Fann made motion to approve; Councilman Carter seconded. Motion carried with 7 ayes and 0 nays.

13. Ordinance #O2302-13 - First Reading

Councilman Fann presented this ordinance to abandon right of way formerly known as Spencer Street.

Councilman Fann made motion to approve; Councilman Hayes seconded. Motion carried with 7 ayes and 0 nays.

14. Ordinance #O2302-14 - First Reading

Vice Mayor Love presented this ordinance appropriating funds received in the amount of \$1,688.44 from insurance claims for damage to a signal.

Vice Mayor Love made motion to approve; Councilwoman George seconded. Motion carried with 7 ayes and 0 nays.

15. Resolution #R2302-12

Councilman Fennell presented this resolution to authorize the Gallatin Fire Department to apply for the Assistance to Firefighters (AFG) Grant.

Councilman Fennell made motion to approve; Vice Mayor Love seconded. Motion carried with 7 ayes and 0 nays.

16. Retail Liquor Store – Certificate of Compliance

City Recorder Connie Kittrell presented a certificate of compliance for Station Camp Wine & Liquor at 382 Big Station Camp.

Owner Nehal Patel was present.

Councilman Hayes made motion to approve; Vice Mayor Love seconded. Motion carried with 7 ayes and 0 nays.

Other Business

Mayor Brown opened other business.

- Mayor Brown stated she had video of TDOT's proposal to invest in infrastructure but due to AV issues she would email the video to council.
- Councilwoman George spoke about the county debt mentioned earlier.
- Councilman Carter reminded all about the Clearview Park meeting at Gallatin Shalom Zone on February 16, 2023.
- Councilman Jouvence thanked Engineering for help with flooding at Veteran's Home.

With no one else wishing to speak, other business was closed.

Public Recognition on Non-Agenda-Related Items

Mayor Brown opened public recognition on non-agenda-related items.

- Patrick Reeners of 317 Malone Drive voiced multiple issues.

With no one else wishing to speak, public recognition on non-agenda-related items was closed.

Adjourn

Councilman Hayes made motion to adjourn; Councilman Hayes seconded. Motion carried with 7 ayes and 0 nays.

Mayor Brown adjourned the meeting at 7:57 P.M. without objection.

Mayor Paige Brown

City Recorder Connie Kittrell

ORDINANCE NO. 02302-17

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, APPROVING AN AMENDMENT TO THE PRELIMINARY MASTER DEVELOPMENT PLAN FOR GOODVIEW COMMONS (F.K.A. E.S. MADDUX COMMERCIAL PARK) ON A PORTION OF A 3.16 +/- ACRE LOT, LOCATED WEST OF GREENLEA BOULEVARD AND SOUTH OF SR 386; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the applicant submitted a complete application for an Amended Preliminary Master Development Plan for Goodview Commons on a portion of a 3.16 +/- acre lot, located west of Greenlea Boulevard and south of Highway 386 in Gallatin, Tennessee; and

WHEREAS, the property is currently zoned PGC-Planned General Commercial; and

WHEREAS, the Gallatin Municipal Planning Commission reviewed and recommended approval of the Preliminary Master Development Plan in GMPC Resolution No 2023-016; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tennessee Code Annotated, Section 13-7-203; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby approve the Amended Preliminary Master Development Plan for Goodview Commons on a portion of a 3.16 +/- acre lot, zoned PGC-Planned General Commercial, as described in Exhibit 'A'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification of an amended preliminary master development plan for the property.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This Ordinance shall take effect upon final passage, the public welfare requiring such.

PASSED FIRST READING: February 21, 2023.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

EXHIBIT 'A'

The Preliminary Master Development Plan for Goodview Commons, (f.k.a. E.S. Maddux Commercial Park) consists of a seven (7) sheet plan, with project no. 22.124G, prepared by GreenLID Design, LLC of Gallatin, TN, dated December 12, 2022, with a revision date of January 12, 2023, with the following conditions:

1. Hotel will have a minimum of 70 rooms.
2. Submit, at minimum, conceptual architectural elevations for the hotel that meet the Basic Design Criteria of the Gallatin Zoning Ordinance, Section 13.08.010.A, Materials.
3. Submit architectural elevations for the Car Wash that meet the Basic Design Criteria of the Gallatin Zoning Ordinance, Section 13.08.010.A, Materials including all wall and monument signs. Signs shall comply with Section 13.07, G.Z.O.
4. Add a pedestrian walkway from Lot 2 that connects to the public sidewalk on Goodview Way.
5. Revise the bufferyard along Green Lea Boulevard to a Type 20 Bufferyard.
6. Properly indicate the plan approved driveway and parking lot on the adjacent lot to the west and remove driveway connection to Goodview Way shown outside the limits of the PMDP revision.
7. Remove driveway connection to Goodview Way shown outside the limits of the PMDP revision.
8. Submit a PDF and DWG of the Amended PMDP to the Planning Department.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 14, 2023

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2302-18 of the City of Gallatin, Sumner County, Tennessee, approving an Amended Preliminary Master Development Plan and a Revised Final Master Development Plan for Enoch Hills, Phase 3 residential development on 30.88 +/- acres zoned R-20 (PRD)-Low Density Residential (Planned Residential Development) located north of Hartsville Pike and west of Woodlands Drive.

SUMMARY:

The owner and applicant request approval of an Amended Preliminary Master Development Plan and Revised Final Master Development Plan for Enoch Hills, Phase 3 for 52 dwelling units on 30.88 +/- acres (Tax Map 112, Parcel 032.00), located on the north side of Hartsville Pike and west of Woodlands Drive.

RECOMMENDATION:

On January 23, 2023, the Planning Commission unanimously (6-0) recommended approval of an amendment to an Amended Preliminary Master Development Plan and a Revised Final Master Development Plan for Enoch Hills, Phase 3 and adopted GMPC Resolution No. 2023-015 (MDP-2022-0303).

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02302-18

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, APPROVING AN AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN AND REVISED FINAL MASTER DEVELOPMENT PLAN FOR ENOCH HILLS, PHASE 3 ON A 30.88 +/- ACRE PARCEL, LOCATED NORTH OF HARTSVILLE PIKE AND WEST OF WOODLANDS DRIVE, AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the applicant submitted a complete application for an Amended Preliminary Master Development Plan/Revised Final Master Development Plan on 30.88 +/- acres, located north of Hartsville Pike and west of Woodlands Drive in Gallatin, Tennessee; and

WHEREAS, the property is currently zoned R-20 (PRD)-Low Density Residential (Planned Residential Development); and

WHEREAS, the Gallatin Municipal Planning Commission reviewed and recommended approval of the Amended Preliminary Master Development Plan and Revised Final Master Development Plan in GMPC Resolution No 2023-015; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tennessee Code Annotated, Section 13-7-203; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby approve the Amended Preliminary Master Development Plan/Revised Final Master Development Plan for Enoch Hills, Phase 3 on 30.88 +/- acres, zoned R-20 (PRD)-Low Density Residential (Planned Residential Development), as described in Exhibit 'A'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification of an amended preliminary master development plan for the property.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This Ordinance shall take effect upon final passage, the public welfare requiring such.

PASSED FIRST READING: February 21, 2023.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

EXHIBIT 'A'

The Preliminary Master Development Plan/Revised Final Master Development Plan consists of a seven (7) sheet plan, prepared by GreenLID Design, LLC of Gallatin, TN, dated December 12, 2022, with a revision date of January 12, 2023, with the following conditions:

1. Install a paved full street stub out (with sidewalks) between Lots 21 and 22 from the proposed cul-de-sac terminating at the landscaping buffer line.
2. Remove the Typical Residential Lot detail on Sheet C3.0. and add required 20' wide street side yard to the Bulk and Area Regulations table on C1.0 and provide side yard building setbacks consistent with setbacks described for Phases 1 & 2.
3. Revise the Note #25 to state that the architecture will be 75% brick/stone to match the recorded HOA documents and approved master plan (File # 8-260646).
4. With ECP submittal:
 - i. Show the next 2 downstream structures for each outfall.
 - ii. Provide a more thorough downstream structure analysis for each outfall showing how bioretention ponds tie into the downstream infrastructure.
5. Prior to LDP application, provide the TDEC NOC.
6. Development shall be subject to Gallatin Department of Electricity's Underground Policy. Any existing facilities that are required to be relocated will be at the developer's expense.
7. Submit a site surety cost calculation sheet to the Planning Department for review and approval per Article 15, Section 15.03.080. A site surety, in the form of cash, certified check, or Irrevocable Letter of Credit, shall be submitted to the Planning Department prior to the issuance of building permits.
8. Submit detailed water and sanitary sewer plans and specifications to the Public Utilities and Industrial Pre-Treatment Departments for review and approval. The water and sanitary sewer infrastructure shall be completed and accepted, or an approved utility surety shall be in place in order for the plat to be signed.
9. Submit revised PDF and DWG digital files of the FMDP to the Planning Department.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 14, 2023

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. 02302-18 of the City of Gallatin, Sumner County, Tennessee, approving an Amended Preliminary Master Development Plan and a Revised Final Master Development Plan for Enoch Hills, Phase 3 residential development on 30.88 +/- acres zoned R-20 (PRD)-Low Density Residential (Planned Residential Development) located north of Hartsville Pike and west of Woodlands Drive.

SUMMARY:

The owner and applicant request approval of an Amended Preliminary Master Development Plan and Revised Final Master Development Plan for Enoch Hills, Phase 3 for 52 dwelling units on 30.88 +/- acres (Tax Map 112, Parcel 032.00), located on the north side of Hartsville Pike and west of Woodlands Drive.

RECOMMENDATION:

On January 23, 2023, the Planning Commission unanimously (6-0) recommended approval of an amendment to an Amended Preliminary Master Development Plan and a Revised Final Master Development Plan for Enoch Hills, Phase 3 and adopted GMPC Resolution No. 2023-015 (MDP-2022-0303).

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02212-71

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING 23.28 +/- ACRES FROM THE R-15 MEDIUM DENSITY RESIDENTIAL DISTRICT TO THE MRO-MULTIPLE RESIDENTIAL AND OFFICE DISTRICT AND 2.00 +/- ACRES FROM THE R-10 MEDIUM DENSITY RESIDENTIAL DISTRICT TO THE MRO-MULTIPLE RESIDENTIAL AND OFFICE DISTRICT WITH A PRELIMINARY MASTER DEVELOPMENT PLAN FOR LAURELWOOD PARK, LOCATED SOUTH OF DRIVERS LANE AND EAST OF LORRAINE DRIVE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property submitted a complete application to rezone 25.28 +/- acres and obtain approval of a Preliminary Master Development Plan for Laurelwood Park, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment and preliminary master development plan conform to the general plan of the area including the Suburban Community Character Area and that the public necessity, convenience, and general welfare, will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning with preliminary master development plan has adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning with preliminary master development plan will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal Planning Commission reviewed and recommended approval of GMPC Resolution No. 2022-172 for the proposed rezoning with Preliminary Master Development Plan; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone 23.28 +/- acres from the R-15 Medium Density Residential District to the MRO-Multiple Residential and Office District and 2.00 +/- acres from the R-10 Medium Density and Residential District to the MRO-Multiple Residential and Office District as described in Exhibit “A” with a Preliminary Master Development Plan for Laurelwood Park, as described in Exhibit ‘B’.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City’s Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING: February 7, 2023.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit A: Legal Description
Exhibit B: Description of PMDP

EXHIBIT 'A'

Legal Descriptions

R-15 Medium Density Residential to MRO-Multiple Residential and Office – 23.28 +/- Acres

Being property situated along the easterly margin of Lorraine Drive, in the 3rd Civil District of Sumner County, Tennessee.

Beginning at an iron pin in the easterly margin of Lorraine Drive. Said pin being a corner to the property conveyed to Jerry and Linda Mcmillan by deed of record in R.B. 509, PG. 510, R.O.S.C., TN. and the southwest corner of the herein described tract. Thence with the margin of Lorraine Drive and a curve turning to the left with an arc length of 22.44', with a radius of 77.46', with a chord bearing of N 17°01'00" E, with a chord length of 22.36'; to a point; Thence N 08°43'05" E a distance of 355.11' to an iron pin; Thence with the line of the property conveyed to Nicholas and Courtney Hudson by deed of record in R.B. 5544, PG. 127, R.O.S.C., TN. S 81°49'57" E a distance of 19.52' to an iron pin old; Thence N 07°51'38" E a distance of 167.88' to a Mag Nail old in a rock; Thence N 81°49'57" W a distance of 78.70' to an iron pin; Thence with the line of the property conveyed to David and Susan Shine by deed of record in R.B. 4156, PG. 408, R.O.S.C., TN. N 06°14'39" E a distance of 282.13' to an iron pin; Thence with the line of Brush Hill Subdivision, of record in Plat Book 11, PG. 128, R.O.S.C., TN , S 83°36'23" E a distance of 231.35' to an iron pin old; Thence with the line of the property conveyed to Amber A. Schewe S 46°55'14" E a distance of 257.60' to an iron pin old; Thence N 13°55'25" E a distance of 369.92' to a concrete monument; Thence with the line of the property conveyed to Ce Sared Robles and Tammy Robles S 76°11'33" E a distance of 194.74' to an iron pin; Thence N 13°48'26" E a distance of 221.04' to a point; Thence S 76°08'30" E 179.03' to a point; Thence with the line of the property conveyed to William and Mary Rutledge by deed of record in R.B. 1716, PG. 382, R.O.S.C., TN. S 13°55'22" W a distance of 220.92' to an iron pin; Thence S 76°10'46" E a distance of 66.21' to an iron pipe old; Thence N 13°57'59" E a distance of 95.51' to an iron pin old; Thence with the line of the property conveyed to Steve Vaughn by deed of record in R.B. 47, PG. 611, R.O.S.C., TN. S 84°10'19" E a distance of 145.19' to an iron pin; Thence with the line of the property conveyed to Jerry and Linda McMillan and the center of a rock wall S 07°30'00" W a distance of 155.94' to a point; Thence S 05°59'18" W a distance of 209.75' to a point; Thence S 07°49'42" W a distance of 321.28' to a point; Thence S 05°48'57" W a distance of 418.37' to an iron pin; Thence N 82°19'16" W a distance of 224.51' to a 24" Cedar; Thence N 81°07'12" W a distance of 120.91' to a 8" Hackberry; Thence N 82°07'20" W a distance of 159.15' to a 18" Hickory; Thence N 84°12'40" W a distance of 168.23' to a 22" Maple; Thence N 75°37'49" W a distance of 37.61' to a 20" Hickory; Thence N 84°29'24" W a distance of 42.52' to a 18" Maple; Thence N 69°56'06" W a distance of 41.46' to a 15" Elm; Thence N 84°26'48" W a distance of 59.21'

to a 18" Elm; Thence S 88°46'41" W a distance of 33.82' to a Steel Post; Thence N 82°32'19" W a distance of 152.28' to the POINT OF BEGINNING. Containing 23.28 acres more or less.

Being the same property conveyed to Harold and Martha Smith by deed of record in D.B. 384, PG. 570, R.O.S.C., TN. and the property conveyed to Donald Wayne Custred by deed of record in D.B. 462, PG. 380, R.O.S.C., TN.

R-10 Medium Density Residential to MRO-Multiple Residential and Office – 2.00 +/- Acres

Being property situated along the southerly margin of Drivers Lane, in the 3rd Civil District of Sumner County, Tennessee.

Beginning at an iron pin in the southerly margin of Drivers Lane. Thence with the margin of Drivers Lane S 79°53'57" E a distance of 180.39' to an iron pin old; Thence with the line of the property conveyed to William and Mary Rutledge by deed of record in R.B. 1716, PG. 382, R.O.S.C., TN. S 13°55'22" W a distance of 490.41' to a point; Thence N 76°08'30" W a distance of 179.03' to a point; Thence with the line of the property conveyed to Ce Sared Robles and Tammy Robles N 13°48'26" E a distance of 478.59' to the POINT OF BEGINNING. Containing 2.00 acres more or less.

EXHIBIT 'B'

The rezoning shall be substantially consistent with the Preliminary Master Development Plan for Laurelwood Park, consisting of a seven sheet plan, prepared by TARR Group of Zionsville, IN, dated September 12, 2022, and date-stamped December 2, 2022, with the following conditions:

1. Revise the city file number on Sheet C1.1 to be ZONE-2022-0077.
2. Revise the number of units in the purpose note from 108 townhomes to 99 townhomes and 4 single-family lots.
3. Provide 10' PUDEs around each townhome lot grouping.
4. Provide an opaque bufferyard/barrier per Section 13.04.050.D. in areas where multi-family units abut lots zoned/developed with single-family uses.
5. If the transfer in ownership occurs for the portion of the property to the north of the Lorraine Drive access and to the west of the farthest west cul-de-sac, a new buffer for that area shall be shown and labeled within the developer's ownership area at the FMDP stage.
6. No lots shall encroach upon the permanent water quality buffer. Remove any lots/units from the stream easement buffer area. Include the water quality buffer within an open space tract(s).
7. Submit revised digital files consisting of the PDF and AutoCAD (dwg.) drawings of the PMDP to the Planning Department addressing all condition of approval.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

DECEMBER 13, 2022

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2212-71 of the City of Gallatin, Sumner County, Tennessee, rezoning 23.28 +/- acres from the R-15 Medium Density Residential District to the MRO-Multiple Residential and Office District and 2.00 +/- acres from the R-10 Medium Density Residential District to the MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for Laurelwood Park.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 23.28 +/- acres from the R-15 Medium Density Residential District to the MRO-Multiple Residential and Office District and 2.00 +/- acres from the R-10 Medium Density Residential District to the MRO-Multiple Residential and Office District with a Preliminary Master Development Plan for Laurelwood Park for 98 townhomes units and four single-family lots, located south of Drivers Lane and east of Lorraine Drive; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On November 14, 2022, the Gallatin Municipal Planning Commission (4-2 vote) recommended approval of GMPC Resolution No. 2022-172 for the rezoning and the preliminary master development plan (ZONE-2022-0077).

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE APPROPRIATING \$7,575.40 FOR INSURANCE RECOVERY FROM
FIRE SUPPRESSION OPERATIONS AT 155 EAST MAIN STREET (NEW
COURTHOUSE UNDER CONSTRUCTION) ON AUGUST 7, 2022.

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum
of \$7,575.40 is hereby appropriated from revenue received from Insurance Recoveries,
account 110-36350, to account 11042220-123, Fire Regular Overtime; and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE,
that this Ordinance shall take effect from and after its final passage, the public welfare
requiring such.

PASSED FIRST READING: February 21, 2023.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 14, 2023

DEPARTMENT: Fire

AGENDA #

SUBJECT:

Ordinance Appropriating \$7,575.40 for insurance recovery from fire suppression operations at 155 East Main Street (New Courthouse Under Construction) on August 7, 2022.

SUMMARY:

This ordinance will appropriate \$7,575.40 from Insurance Recoveries, account #110-36350 to account #11042220-123, Fire Regular Overtime. This funding will reimburse the Fire Department for personnel expenses incurred related to fire suppression operations at 155 East Main Street on August 7, 2022.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02302-16

**ORDINANCE APPROPRIATING \$3,500.00 FROM PROJECT WOOLHAWK FOR
PLANNING DEPARTMENT OFFICE RENOVATION EXPENSES**

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEEE, that the sum of \$3,500.00 is hereby appropriated from Donations from Business – Woolhawk, account number 110-36710-256 to the Planning Department Office Renovations account 11041700-939-256 for the expenses related to project Woolhawk; and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING: February 21, 2023.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 14, 2023

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2302-16 of the City of Gallatin, Sumner County, Tennessee, appropriating \$3,500.00 from the Project Woolhawk fund for Planning Department office renovations.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, appropriating funds from the Project Woolhawk Fund to the Planning Department Office Renovation Account to construct office renovations. The project includes constructing a wall within the open-air room to separate the Codes Department activities from Planning Department offices.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

**ORDINANCE AMENDING GALLATIN MUNICIPAL CODE CHAPTER 2, ARTICLE I,
SECTION 2-5 ACCEPTANCE OF GRATUITIES**

WHEREAS, it is deemed in the public interest to amend the Gallatin Municipal Code from time to time; and

WHEREAS, The Mayor and City Council have recommended that the City of Gallatin Municipal Code be amended to provide an exception to the acceptance of gratuities by officials and employees.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the Gallatin Municipal Code, Chapter 2, Article I, Section 2-5 is hereby amended by deleting Section 2-5 in its entirety and replacing it with the following:

Sec. 2-5 Acceptance of gifts and gratuities

- (a) An official or employee may not accept, directly or indirectly, any money, gift, gratuity, or other consideration or favor of any kind from anyone other than the city:
 - (1) For the performance of an act, or refraining from performance of an act, that he/she would be expected to perform, or refrain from performing, in the regular course of duties; or
 - (2) That might reasonably be interpreted as an attempt to influence his/her action, or reward him/her for past action, in executing municipal business.
- (b) Notwithstanding any other provision of this article, employees and officials may accept meals or any food items, gifts, promotional items or mementos that are unsolicited and of a de minimis value or are otherwise allowed by state law. For the purposes of this section, the term “de minimis value” means deemed to be a value, on a per occurrence or per event basis of \$50.00 or less.
- (c) Notwithstanding any other provision of this article, a gift given by an individual for a non-business purpose and which is motivated by a close personal relationship shall not be deemed to violate this section.
- (d) The gifts, gratuities, honoraria and any other things listed in the Tennessee Ethics Commission Act, Specifically but not exclusively Tenn. Code Ann. § 3-6-305(b) shall not be prohibited.

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING: February 21, 2023.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

West's Tennessee Code Annotated

Title 3. Legislature

Chapter 6. Ethics and Lobbying

Part 3. Lobbyists

T. C. A. § 3-6-305

§ 3-6-305. Gifts; exceptions

Effective: July 10, 2014

Currentness

(a)(1) No employer of a lobbyist or lobbyist may provide a gift, directly or indirectly, to a candidate for public office, official in the legislative branch, official in the executive branch, or immediate family of such candidate or official.

(2) A candidate for public office, an official in the legislative branch, or an official in the executive branch, or the immediate family of such candidate or official, may not solicit or accept, directly or indirectly, a gift from an employer of a lobbyist or a lobbyist.

(b) The following are not subject to the prohibition in subsection (a):

(1) Benefits resulting from business, employment, or other outside activities of a candidate or official or the immediate family of a candidate or official, if such benefits are customarily provided to others in similar circumstances and are not enhanced due to the status of the candidate or official;

(2) Informational materials in the form of books, articles, periodicals, other written materials, audiotapes, videotapes, or other forms of communication;

(3) Gifts that are given for a nonbusiness purpose and motivated by close personal friendship, but only to the extent such gifts are specifically defined and authorized by the rules of the ethics commission;

(4) Sample merchandise, promotional items, and appreciation tokens, if such merchandise, items and tokens are routinely given to customers, suppliers or potential customers or suppliers in the ordinary course of business;

(5) Unsolicited tokens or awards of appreciation, honorary degrees, or bona fide awards in recognition of public service in the form of a plaque, trophy, desk item, wall memento and similar items; provided, that any such item shall not be in a form that can be readily converted to cash;

(6) Opportunities and benefits made available to all members of an appropriate class of the general public, including, but not limited to:

(A) Discounts afforded to the general public or specified groups or occupations under normal business conditions, except that such discounts may not be based on the status of the candidate or official;

(B) Prizes and awards given in public contests; and

(C) Benefits of participation in events held within the state and sponsored by, or for the benefit of, charitable organizations as defined in § 48-101-501, if provided by an employer of a lobbyist to an official in the executive branch or to an official in the legislative branch; provided, that such events are open to participation by persons other than officials in the executive branch or officials in the legislative branch or the official's immediate family and any benefits received are not enhanced due to the status of the official in the executive or legislative branch; or provided, that invitations are extended to the entire membership of the general assembly;

(7)(A) Expenses for out-of-state travel, if such expenses are paid for or reimbursed by a governmental entity or an established and recognized organization of elected or appointed state government officials, staff of state government officials or both officials and staff, or any other established and recognized organization that is an umbrella organization for such officials, staff, or both officials and staff;

(B) Entertainment, food, refreshments, meals, beverages, amenities, goody bags, exhibitor promotional items given in the exhibit hall to conference attendees, health screenings, lodging, or admission tickets that are provided in connection with, and are arranged or coordinated through the employees or designated agents of, a conference, if the conference is sponsored by an established and recognized organization of elected or appointed state government officials, staff of state government officials or both officials and staff, or any other established and recognized organization that is an umbrella organization for such officials, staff, or both officials and staff. For purposes of this subdivision (b)(7)(B), any entertainment, food, refreshments, meals, beverages, amenities, goody bags, or admission tickets provided at events designated as a state night or other events for attendees of the conference shall be deemed to be provided in connection with, and arranged or coordinated through the employees or designated agents of the conference;

(8) Entertainment, food, refreshments, meals, beverages, or health screenings that are provided in connection with an in-state event to which invitations are extended to the entire membership of the general assembly; however, a copy of the invitation shall be delivered to the ethics commission and to each member of the general assembly at least seven (7) days in advance of the event by the employer or lobbyist paying for the event; provided further, however, that, within thirty (30) days following the event, the employer or lobbyist shall electronically report to the commission the total aggregate cost paid for the event, as well as the per person contractual cost for the event or the per person cost for the event based on the number of persons invited, which shall not exceed fifty dollars (\$50.00) per person per day, excluding sales tax and gratuity. The value of any

such gift may not be reduced below the monetary limitation by dividing the cost of the gift among two (2) or more lobbyists or employers of lobbyists. All such information delivered or reported to the commission shall be promptly posted on the commission's Internet site. The filing of a consolidated report may be authorized by rule, promulgated pursuant to § 4-55-103(1), if the costs of the event are shared by two (2) or more employers or lobbyists; however, any such report shall specify the allocation of the costs among the employers or lobbyists; provided further, however, that the employers or lobbyists shall remain individually accountable for the timeliness and accuracy of the consolidated filing. The fifty dollar (\$50.00) limitation shall be increased to the nearest one dollar (\$1.00) amount to reflect the percentage of change in the average consumer price index (all items-city average) as published by the United States department of labor, bureau of labor statistics, every odd-numbered year on January 1, starting in 2007. The ethics commission shall publish the increased amount on its web site;

(9) Entertainment, food, refreshments, meals, amenities, or beverages that are provided in connection with an in-state event at which a candidate for public office, an official in the legislative branch or an official in the executive branch, or an immediate family member of the candidate or official is a speaker or part of a panel discussion at a scheduled meeting of an established and recognized membership organization that has regular meetings; however, the cost of the entertainment, food, refreshments, meals, amenities, or beverages shall be paid for or reimbursed by the membership organization and the per person cost of the event, which shall not exceed fifty dollars (\$50.00) per person per day, excluding sales tax and gratuity. The value of any such gift may not be reduced below such monetary limitation by dividing the cost of the gift among two (2) or more lobbyists or employers of lobbyists. The fifty dollar (\$50.00) limitation shall be increased to the nearest one dollar (\$1.00) amount to reflect the percentage of change in the average consumer price index (all items-city average) as published by the United States department of labor, bureau of labor statistics, every odd-numbered year on January 1 starting in 2007. The ethics commission shall publish the increased amount on its web site;

(10)(A) Food, refreshments, meals, or beverages that are provided by an employer of a lobbyist in connection with an in-state event to which invitations are extended to an official or officials in the legislative branch or official or officials in the executive branch; provided, that:

(i) No employer of a lobbyist may provide food, refreshments, meals, or beverages, the value of which to the official exceeds fifty dollars (\$50.00) per event per day, excluding sales tax and gratuity; nor may such employer of a lobbyist provide any such items to any official pursuant to this subdivision (b)(10)(A)(i) that have a cumulative value of more than one hundred dollars (\$100) to the official during a calendar year;

(ii) The value of any such gift may not be reduced below such monetary limitations by dividing the cost of the gift among two (2) or more employers of lobbyists;

(iii) This exception to the prohibition in subsection (a) only applies to a member or members of the general assembly, if the member or members do not receive a per diem allowance pursuant to § 3-1-106, for the day on which the event is held and the member or members do not receive any food, refreshments, meals or beverages that are provided in connection with the in-state event that are not offered or provided to other nonmembers in attendance at the event; and

(iv) An officer or management-level employee of each employer of a lobbyist paying for the event shall attend the event; however, a lobbyist shall not be considered to be an officer or management-level employee of an employer of the

lobbyist paying for the event for purposes of this subdivision (b)(10)(A)(iv).

(B) The fifty dollar (\$50.00) and one hundred dollar (\$100) amounts in subdivision (b)(10)(A)(i) shall be increased to the nearest one dollar (\$1.00) amount to reflect the percentage of change in the average consumer price index (all items-city average) as published by the United States department of labor, bureau of labor statistics, every odd-numbered year on January 1 starting in 2007. The ethics commission shall publish the increased amount on its web site;

(11) Occasional or incidental local travel for which no fare is ordinarily charged; or

(12) Expired.

(c) If an official in the legislative or executive branch attends an event and accepts a gift that is provided by a person or entity not subject to the prohibition set forth in § 3-6-305(a), and if a lobbyist also attends the event and knows or has reason to know that the gift has been provided at the suggestion or direction of the lobbyist, then, within seven (7) days following the event, the lobbyist shall electronically report the following information to the ethics commission:

(1) Name of the official or family member;

(2) Nature and purpose of the event;

(3) Name, address and business of the person or entity that provided the gift;

(4) Description of the gift; and

(5) Cost of the gift; however, if the cost of the gift is unknown and not reasonably discernible by the lobbyist, then the lobbyist shall report a good faith estimate of the cost of the gift.

(d) A gift made contrary to this section, shall not be a violation of this section, if the candidate, official or immediate family member does not use the gift and returns it to the donor within the latter of ten (10) days of receipt or ten (10) days of having knowledge that the gift was a violation or pays consideration of equal or greater value within the latter of ten (10) days of receipt or ten (10) days of having knowledge that the gift was a violation.

Credits

§ 3-6-305. Gifts; exceptions, TN ST § 3-6-305

2006 Pub.Acts (1st Ex.Sess.), c. 1, § 35, eff. Feb. 15, 2006; 2006 Pub.Acts, c. 803, § 1, eff. June 1, 2006; 2008 Pub.Acts, c. 965, § 2, eff. May 19, 2008; 2009 Pub.Acts, c. 556, § 23, eff. July 1, 2009.

Notes of Decisions (1)

T. C. A. § 3-6-305, TN ST § 3-6-305

Current with laws from the 2022 Second Regular Sess. of the 112th Tennessee General Assembly. Pursuant to §§ 1-1-110, 1-1-111, and 1-2-114, the Tennessee Code Commission certifies the final, official version of the Tennessee Code and, until then, may make editorial changes to the statutes. References to the updates made by the most recent legislative session should be to the Public Chapter and not to the T.C.A. until final revisions have been made to the text, numbering, and hierarchical headings on Westlaw to conform to the official text. Unless legislatively provided, section name lines are prepared by the publisher.

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**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBRUARY 14, 2023

DEPARTMENT: City Attorney

AGENDA #

SUBJECT:

Amendment of Ethics rule re: Gifts and gratuities

SUMMARY:

Council requested a change to the Ethics rules to allow for small gifts and gratuities to employees. The amendment allows for meals, gifts, promotional items or mementos of a "de minimis value." Council needs to determine the amount to set as the cap for "de minimis value." Most cities with this exception limit the amount to \$25 or \$50.

The amendment also clarifies that gifts from personal friends do not violate this section and that all exceptions set out in the Tennessee Ethics Commission Act, Tenn. Code Ann. Sec.3-6-305(b) shall not be prohibited. This TCA section is attached for your reference.

RECOMMENDATION:

Approve resolution

ATTACHMENT:



Approved	☒
Rejected	☐
Deferred	☐

Notes:

ORDINANCE APPROPRIATING \$1,400,000.00 FOR CONSTRUCTION OF THE CITY OF
GALLATIN POLICE DEPARTMENT GUN RANGE FACILITY

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of
\$1,400,000.00 is hereby appropriated from the Unassigned General Fund Balance for construction of the Police
Department Gun Range Facility on Commerce Way in Gallatin Industrial Center Phase 1 to the following
account:

Fire/Police Industrial Park #110-43000-922-204

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this
Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Gallatin Police Pavilion – Section I

Boger Construction Bid

Schedule of Unit Prices

A. BIDDER'S INSTRUCTIONS

- o General Bidders shall enter on the Schedule of Unit Prices, a single amount for each unit lump sum price requested.
- o Unit lump sum prices shall provide for a variance in quantities as an add or a deduct to the original bid.
- o If more work than specified in the base bid is required compensation shall be paid per the listed unit lump sum price. If less work than specified is required, then a credit for the deduct per the unit price shall be processed. An adjustment to the overall contract price will be made upon the final application for payment.
- o The Owner may reject any or all unit lump sum prices at the time of Award if it deems the price unreasonable, without affecting the base bid.
- o All unit lump sum prices quoted shall include their pro-rata share of all costs for overhead & profit, bond, labor, materials, disposal, and equipment necessary to completely perform the Work required for that unit of work.

- B. The proposed Unit Price(s) for the above-referenced project are as follows (additional sections may be added if necessary):

DESCRIPTION	UNIT (Lump Sum)	AMOUNT
01 General Requirements		- 222,101.00
02 Sitework		- 582,040.00
03 Concrete		- 128,250.00
04 Masonry		- 137,000.00
05 Metals		- 15,000.00
06 Wood and Plastics		- 20,759.00
07 Thermal and Moisture Protection		- 7,000.00
08 Doors and Windows		- 27,339.00
09 Finishes		- 65,685.00
10 Specialties		- 11,469.00
11 Equipment		- 1,000.00
12 Furnishings		- 6,200.00
13 Special Construction		- 195,275.00
22 Plumbing		- 83,430.00
23 HVAC		- 91,574.00
26 Electrical		- 270,000.00 270,000.00
27 Communications		- 44,749.00
28 Electronic Safety and Security		- 34,100.00
Removal of Unsuitable Material	26.00 CY	
Mass Rock Excavation	100.00 CY	
Trench Rock Excavation	140.00 CY	
Import Structural Fill	30.00 CY	
Import Topsoil	35.00 CY	
Additional Base Stone Outside	45.00 TN	

Gallatin Police Pavilion – Section I**Olympian
Construction
Bid****Schedule of Unit Prices****A. BIDDER'S INSTRUCTIONS**

- o General Bidders shall enter on the Schedule of Unit Prices, a single amount for each unit lump sum price requested.
- o Unit lump sum prices shall provide for a variance in quantities as an add or a deduct to the original bid.
- o If more work than specified in the base bid is required compensation shall be paid per the listed unit lump sum price. If less work than specified is required, then a credit for the deduct per the unit price shall be processed. An adjustment to the overall contract price will be made upon the final application for payment.
- o The Owner may reject any or all unit lump sum prices at the time of Award if it deems the price unreasonable, without affecting the base bid.
- o All unit lump sum prices quoted shall include their pro-rata share of all costs for overhead & profit, bond, labor, materials, disposal, and equipment necessary to completely perform the Work required for that unit of work.

B. The proposed Unit Price(s) for the above-referenced project are as follows (additional sections may be added if necessary):

DESCRIPTION	UNIT (Lump Sum)	AMOUNT
01 General Requirements	1	\$176,370.25
02 Sitework	1	\$337,064.98
03 Concrete	1	\$168,118.40
04 Masonry	1	\$258,437.64
05 Metals	1	\$37,535.15
06 Wood and Plastics	1	\$7,711.68
07 Thermal and Moisture Protection	1	\$14,959.94
08 Doors and Windows	1	\$29,463.17
09 Finishes	1	\$77,594.26
10 Specialties	1	\$14,840.75
11 Equipment	N/A	N/A
12 Furnishings	1	\$6,141.97
13 Special Construction	1	\$197,035.83
22 Plumbing	1	\$44,100.00
23 HVAC	1	\$96,520.34
26 Electrical	1	\$303,759.09
27 Communications	N/A	N/A
28 Electronic Safety and Security	N/A	N/A

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

February 28, 2023

DEPARTMENT: Police

AGENDA #

SUBJECT:

Ordinance No. O2303-20 to appropriate additional funds for the Police Gun Range facility

SUMMARY:

The city received two sealed bids for construction:

- Boger Construction : \$1,746,000.00
- Olympian Construction: \$1,769, 653.45

Both bids are under review. The City has asked both bidders for clarifications on parts of their bids. Today, there is \$414,467.00 in the gun range budget for construction. The attached ordinance would appropriate an additional \$1,400,000.00 to the budget for this project. The bids are good for 60 days.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE AMENDING GALLATIN MUNICIPAL CODE CHAPTER 17,
ARTICLE II, SECTION 17-59, AND CHAPTER 17, ARTICLE III, SECTION 17-180 WATER
AND SEWER RATES

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, as follows:

1. That sections 17-59, and 17-180 of the Gallatin Municipal Code are hereby deleted in their entirety and replaced respectively with the following:

Sec. 17-59. Water Rates, Fees and Charges.

- (a) Rates, fees, and charges for the water system shall be established by ordinance from time to time with the current schedule of rates, fees, and charges to be maintained on file in the City Recorder's office and in the customer service department of Gallatin Public Utilities. For water services charged to customers outside the city limits, the rate charged shall be one hundred fifty (150) percent of the rate for inside city users. Water rates shall be as follows:

Effective July 1, 2023:

1. Inside City limits:

125 cubic feet (minimum)	\$11.92
over 125 cubic feet	\$3.25 per 100 cubic feet
2. Outside City limits:

125 cubic feet (minimum)	\$17.88
over 125 cubic feet	\$4.88 per 100 cubic feet

Effective July 1, 2024:

1. Inside City limits:

Meter Charge	\$11.92
All Usage	\$3.25 per 100 cubic feet
2. Outside City limits:

Meter Charge	\$17.88
All Usage	\$4.88 per 100 cubic feet

- (b) Fees and charges shall include but not be limited to, the following:

1. Connection Fee – Residential (Inside City Limits):
\$30.00
2. Connection Fee – Residential (Outside City Limits):
\$30.00

3. Connection Fee – Commercial and Industrial
\$100.00
4. Transfer Fee – Per service
\$25.00
5. Reconnect Fee – (Inside City Limits), per service
\$25.00
6. Reconnect Fee – (Outside City Limits), per service
\$30.00
7. Reconnect Fee – (After Hours), per service
\$50.00
8. Service Fee – (Inside City Limits) - may apply to the
\$25.00 following: pulled meter, reset meters, test meters, etc. – per meter
9. Service Fee – (Outside City Limits) – may apply to the
\$30.00 following: pulled meter, reset meter, test meter, etc. – per meter
10. Returned Check or Returned Draft
\$20.00
11. Bulk Water
\$5.00 per 1,000 gallons

(c) Bulk Water and Temporary Fire Hydrant Meters

Any customer requesting a temporary fire hydrant supplied water meter shall pay a \$1,000.00 deposit for the use of the fire hydrant meter. The customer shall pay a minimum monthly fire hydrant water meter use fee of \$250.00. The customer shall also be responsible for all charges related to the bulk water consumption, as well as for any damages to the fire hydrant or the fire hydrant meter assembly.

Sec. 17-180. Sewer Service Rates.

- (a) Rates, fees, and charges for the sewer service shall be established by ordinance from time to time with the current schedule of rates, fees, and charges to be maintained on file in the City Recorder's office and in the customer service department of Gallatin Public Utilities. For sewer services charged to customers outside the city limits, the rate charged shall be one hundred fifty (150) percent of the rate for inside city users. Sewer rates shall be as follows:

Effective July 1, 2023:

1. Inside City limits:

125 cubic feet (minimum)	\$11.92
over 125 cubic feet	\$3.25 per 100 cubic feet
2. Outside City limits:

125 cubic feet (minimum)	\$17.88
over 125 cubic feet	\$4.88 per 100 cubic feet

Effective July 1, 2024:

- | | |
|-------------------------|---------------------------|
| 1. Inside City limits: | |
| Meter Charge | \$11.92 |
| All Usage | \$3.25 per 100 cubic feet |
| 2. Outside City limits: | |
| Meter Charge | \$17.88 |
| All Usage | \$4.88 per 100 cubic feet |

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

February 28, 2023

DEPARTMENT: Public Utilities

AGENDA # 4

SUBJECT:

Ordinance No. O2303-21 -Proposed Water and Sewer Rate Change

SUMMARY:

Authorize new water and sewer rates.

RECOMMENDATION:

Passage

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

**A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF GALLATIN,
SUMNER COUNTY, TENNESSEE AUTHORIZING THE PROPERTY OWNER AND
APPLICANT TO SUBMIT AN APPLICATION FOR ANNEXATION INTO THE
CITY OF 230.34 +/- ACRES EAST OF LOCK 4 ROAD AND NORTH OF PEACH
VALLEY ROAD**

WHEREAS, the owner of a 230.34 +/- acre property East of Lock 4 Road and North of Peach Valley Road requests the City Council to authorize the submittal of a petition to annex this contiguous property into the City; and

WHEREAS, the property is located in the City of Gallatin Urban Growth Boundary; and

WHEREAS, **THE CITY COUNCIL OF THE CITY OF GALLATIN** reserves discretion over whether to formally consider adoption of a Resolution for annexation after a recommendation of the Gallatin Municipal Planning Commission; and

WHEREAS, **THE CITY COUNCIL OF THE CITY OF GALLATIN** reviewed and discussed the request at a Council Committee meeting and at a City Council Meeting.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, as follows:

Section 1. The City Council of the City of Gallatin does hereby support and authorize the owner of property described in Exhibit 'A' to submit an application for the annexation of property described in Exhibit 'B' for consideration by the Gallatin Municipal Planning Commission and the City Council.

Section 2. Adoption of this Resolution shall not act as an endorsement of or be perceived as approval of an application for annexation but only authorizes the owner/applicant to submit an application for consideration by the Planning Commission and the City Council.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit A – Petition by the Owner/Applicant of property proposed for annexation
Exhibit B – Description of property(ies) posed for annexation



January 10, 2023

Mr. William McCord
City of Gallatin Planning Department
132 W. Main Street
Gallatin, Tennessee 37066

CSDG Project #: 21-045-01

**RE: The Banks at Lock 4
Annexation Petition
Map 135, 109.01
Gallatin, Sumner County, Tennessee**

Dear Mr. McCord,

Please find that this letter satisfies the requirements of a formal annexation petition for the above mentioned 230.34 Ac tract. This tract is located East of Lock 4 Road, North of Peach Valley Road, and over half of its boundary touches properties within the City of Gallatin.

Now that we have the support of the current property owners, we respectfully request your support of this annexation request when it is presented to City Council at the January 24th meeting.

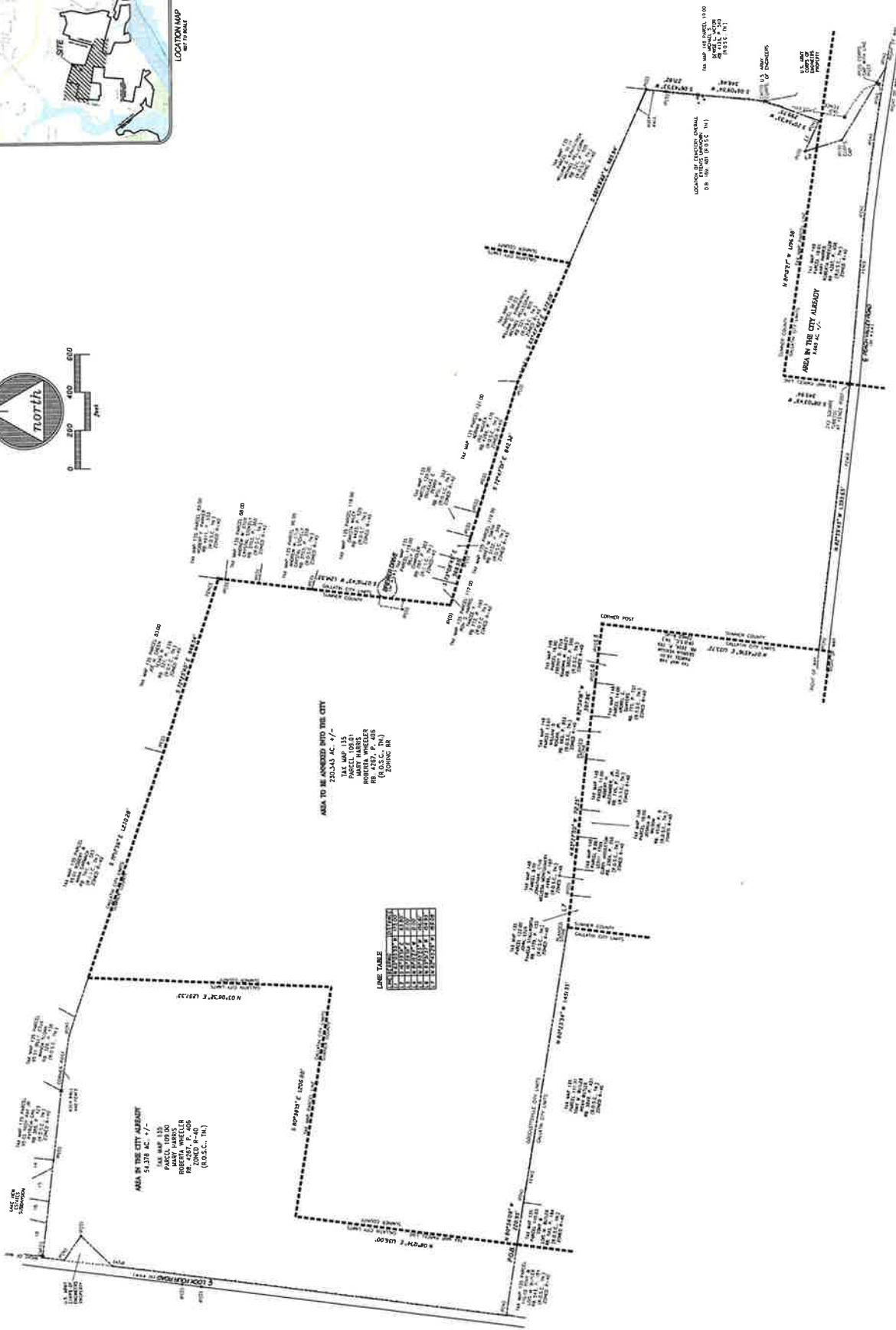
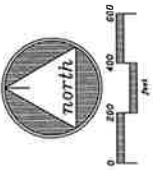
The supplemental documents listed below have also been filed with this letter:

1. Conceptual Site Plan
2. Annexation Exhibit (Parcel 109.01)
3. Annexation Legal Description (Parcel 109.01)
4. Utility Availability Letter
5. Owner Affidavit

These items have been submitted directly to staff. If there is anything else you might need or if you have any questions, please do not hesitate to contact me at 615-248-9999 or via email at KyleG@csdgt.com.

Respectfully submitted,
CSDG

Kyle Griffin, P.E.
Sr. Associate • Professional Engineer



LINE TABLE

LINE NO.	BEARING	DISTANCE	AREA
1	N 0° 00' 00" E	100.00	0.00
2	N 90° 00' 00" E	100.00	0.00
3	N 0° 00' 00" E	100.00	0.00
4	N 90° 00' 00" E	100.00	0.00
5	N 0° 00' 00" E	100.00	0.00
6	N 90° 00' 00" E	100.00	0.00
7	N 0° 00' 00" E	100.00	0.00
8	N 90° 00' 00" E	100.00	0.00
9	N 0° 00' 00" E	100.00	0.00
10	N 90° 00' 00" E	100.00	0.00

ANNEX EXHIBIT

PARCEL IDS: 135, 109.00, 109.01 & 148, 18.01

CITY OF SPANISH COUNTRY, TENNESSEE
3rd CON. DISTRICT OF SPANISH COUNTY, TENNESSEE

Owner: Mary Harris, B. Robert Harris
DEED BOOK 467, PAGE 406

Register's Office for Spanish County, Tennessee (R.O.S.C., TN)

SEC, Inc. SITE ENGINEERING CONSULTANTS
ENGINEERING • SURVEYING • LAND PLANNING
WWW.SEC-CIVIL.COM 100 W. 10th St., Suite 100, Nashville, TN 37203
TEL: 615.259.1234 FAX: 615.259.1235

DATE 4/14/2023	BY [Signature]	SCALE 1" = 50'	SHEET 1 OF 1
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A TRACT OF LAND IN THE 3rd CIVIL DISTRICT OF SUMNER COUNTY, TENNESSEE, GENERALLY BEING BOUND ON THE NORTH BY ROBERT AND ANNA CARMACK (R.B. 380, P. 565) AND JOE AND TEXAS GREEN (R.B. 321, PG. 239), BOUND ON THE NORTHEAST BY SEC. 1 OF PLEASANT ACRES SUBDIVISION (P.B. 6, P. 19), ANDREW, AND CRYSTAL STOKELY (R.B. 3703, P. 358), SOUTH RIDGE SUBDIVISION (P.B. 12, P. 172), ADRIAN AND JILL MOJICA (R.B. 4284, P. 176), WILLIAM G. KIRKPATRICK, AND MICHAEL PELLEGRIN (R.B. 521, P. 805), BOUND ON THE EAST BY MICHAEL S. AND DENISE L. VICTOR (R.B. 4128, P. 540), THE U.S. ARMY CORPS OF ENGINEERS, BOUND ON THE SOUTH BY THE NORTH MARGIN OF PEACH VALLEY ROAD, ON THE SOUTH BY GEORGIA VENSON (R.B. 2956, PG. 769), FREDDY AND RAMONA BAILEY (R.B. 3807, P. 350), ARDREL C. SAWYERS (R.B. 773, P. 737), WILLIAM D. ROGAN (R.B. 663, P. 853), ROBERT H. ALEXANDER (R.B. 745, P. 231), JOSHUA M. WILSON (R.B. 4539, P. 8), LEROY, ETUX, ELROY MIDDLETON (R.B. 2304, P. 355), JONATHAN, ETUX. MELISSA MONTGOMERY (R.B. 4496, P. 197), JOHN, ETUX. PAMELA STALLWORTH (R.B. 4779, P. 133), TONY M. AND NOAH BUTLER (R.B. 3849, P. 421), AND TONY AND LOIS M. BUTLER (R.B. 543, P. 184). ALL AS RECORDED IN THE REGISTER'S OFFICE FOR SUMNER COUNTY, TENNESSEE (R.O.S.C., TN.). BOUND ON THE WEST BY THE EAST MARGIN OF LOCK 4 ROAD AND THE U.S. ARMY CORPS OF ENGINEERS PROPERTY IS MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT BEING ON THE NORTHEAST CORNER OF LOIS M. BUTLER THENCE, WITH THE EAST LINE OF HARRIS/ WHEELER PARCEL 109.00 FOR THE FOLLOWING CALLS:

N 08°12'14" E FOR A DISTANCE OF 1156.00' TO A POINT;
THENCE, S 80°38'15" E FOR A DISTANCE OF 1206.00' TO A POINT;
THENCE, N 03°06'32" E FOR A DISTANCE OF 1257.33' TO A POINT THE SOUTH PROPERTY LINE OF ROBERT AND ANNA CARMACK;
THENCE, WITH SAID LINE S 71°17'56" E FOR A DISTANCE OF 1,230.28' TO AN IRON PIPE FOUND; THENCE, WITH THE SOUTH PROPERTY LINE OF JOE GREEN, S 72°23'40" E FOR A DISTANCE OF 948.54' TO A FENCE CORNER POST WITH FLAGGING; THENCE, ALONG THE WEST PROPERTY LINE OF PLEASANT ACRES SUBDIVISION AND SOUTH RIDGE SUBDIVISION, AND CROSSING A T.V.A. POWERLINE EASEMENT, S 07°16'43" W FOR A DISTANCE OF 1,214.53' TO AN IRON PIPE FOUND; THENCE, WITH THE SOUTH PROPERTY LINE OF SOUTH RIDGE SUBDIVISION SECTION 5, S 73°08'45" E FOR A DISTANCE OF 368.55' TO AN IRON PIPE FOUND; THENCE, WITH THE SOUTH PROPERTY LINE OF PERRY, AND ADRIAN MOJICA, S 72°47'01" E FOR A DISTANCE OF 842.32' TO AN IRON PIN FOUND AT THE BASE OF A TREE WITH CAP STAMPED DIEL; THENCE, WITH THE SOUTH PROPERTY LINE OF WILLIAM KIRKPATRICK, AND MICHAEL PELLEGRIN, AND GENERALLY ALONG A MEANDERING FENCE AND ROCK WALL, S 65°48'13" E FOR A DISTANCE OF 1,658.41' TO AN IRON PIN FOUND AT THE END OF SAID ROCK WALL AND FENCE; THENCE, ALONG A FENCE, THE WEST PROPERTY LINE OF MICHAEL AND DENISE VICTOR, AND THE EAST PROPERTY LINE OF HEREIN DESCRIBED PROPERTY FOR THE NEXT TWO (2) CALLS, S 06°43'53" W, PASSING AN IRON PIN FOUND AT 104.12', FOR A DISTANCE OF 271.82' TO A R.R. TIE FENCE CORNER POST; THENCE, ALONG SAID FENCE, S 06°09'34" W FOR A DISTANCE OF 348.46' TO A U.S. ARMY CORPS OF

ENGINEERS CONCRETE MONUMENT FOUND; THENCE, CROSSING A MEANDERING OLD FENCE IN WOODS, S 20°54'33" W, PASSING A U.S. CORPS OF ENGINEERS PROPERTY LINE POST AT A DISTANCE OF 180.35', FOR A TOTAL DISTANCE OF 299.75' TO AN IRON PIN NEW STAMPED SEC, INC.; THENCE, N 65°05'55" W FOR A DISTANCE OF 175.00' TO A U.S. CORPS OF ENGINEERS ANGLE IRON FOUND BY A T-POST; THENCE, S 16°39'01" E FOR A DISTANCE OF 63.80' TO A POINT ON THE NORTH LINE OF HARRIS/ WHEELER PARCEL 18.01; THENCE, WITH SAID LINE FOR THE FOLLOWING CALLS:

N 81°15'27" W FOR A DISTANCE OF 1196.38' TO A POINT;

THENCE, S 08°03'49" W FOR A DISTANCE OF 345.94' TO 2X2 SQUARE TUBE @ FENCE POST ON THE NORTH MAGIN OF PEACH VALLEY ROAD; THENCE, WITH SAID RIGHT OF WAY N 82°59'43" W FOR A DISTANCE OF 1,395.65' TO AN IRON PIN NEW WITH CAP STAMPED SEC, INC.;

THENCE, LEAVING SAID RIGHT OF WAY, ALONG THE EAST PROPERTY LINE OF GEORGIA VENSON, N 07°45'16" E FOR A DISTANCE OF 1,133.72' TO A FENCE CORNER POST FOUND;

THENCE, ALONG THE NORTH LINE OF VENSON, N 81°55'23" W FOR A DISTANCE OF 156.61' TO AN IRON PIN FOUND;

THENCE, ALONG THE NORTH PROPERTY LINE OF BAILEY, N 83°51'37" W FOR A DISTANCE OF 154.95' TO AN IRON PIN FOUND;

THENCE, ALONG THE NORTH PROPERTY LINE OF SAWYERS, AND ROGAN, N 82°34'16" W FOR A DISTANCE OF 397.96' TO A PLANTED STONE FOUND;

THENCE, WITH THE NORTH PROPERTY LINES OF ALEXANDER, WILSON, MIDDLETON, AND MONTGOMERY, N 83°27'50" W FOR A DISTANCE OF 712.25' TO AN IRON PIN FOUND;

THENCE, ALONG THE NORTH PROPERTY LINE OF STALLWORTH, N 82°45'29" W FOR A DISTANCE OF 169.08' TO A PLANTED STONE FOUND;

THENCE, ALONG THE NORTH PROPERTY LINE OF BUTLER, N 80°23'34" W FOR A DISTANCE OF 1,451.35' TO AN IRON PIN NEW WITH CAP STAMPED SEC, INC.;

THENCE, N 80°54'09" W FOR A DISTANCE OF 220.95' TO THE POINT OF BEGINNING CONTAINING 230.343 ACRES ACCORDING TO A FIELD SURVEY BY SEC, INC. DATED NOVEMBER 9, 2021.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

JANUARY 24, 2023

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2302-13 of the City of Gallatin, Sumner County, Tennessee, authorizing the property owner and applicant to submit an application for the annexation of a 230.34 +/- acre parcel (Tax Map 135, Parcel 109.01) into the City of Gallatin.

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, authorizing the property owner and applicant to submit an application for the annexation of a 230.34 +/- acre parcel (Tax Map 135, Parcel 109.01) into the City of Gallatin, located east of Lock 4 Road and north of Peach Valley Road.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2303-26

**RESOLUTION APPOINTING INTERIM DIRECTOR OF HUMAN RESOURCES
AND SETTING COMPENSATION RATE**

BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Mayor has appointed and Council has confirmed JILL RUSSELL as Interim Director of Human Resources due to the vacancy in that office and shall receive compensation in compliance with Gallatin Municipal Code Chapter 2, Article II, Div. 2, Section 2-47.

BE IT FURTHER RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that JILL RUSSELL shall receive compensation at the hourly rate of \$43.9033/hr., the starting rate of pay of Director of Human Resources.

BE IT FURTHER RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that said compensation shall be effective as of March 6, 2023 and cease when the interim duties are no longer performed as determined by the Mayor or City Council.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

FEBURARY 28, 2023

DEPARTMENT: Mayor's Office

AGENDA #

SUBJECT:

R2303-26 Resolution Appointing Interim Director of Human Resources and Setting Compensation Rate

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION APPOINTING RONALD “COLE” SHEPHERD TO THE HISTORIC
DISTRICT COMMISSION

WHEREAS, Section 10.02.040.A of the Gallatin Zoning Ordinance authorizes the Mayor to appoint members to the Gallatin Historic District Commission and

WHEREAS, the Mayor has nominated Ronald “Cole” Shepherd to serve as interim in replace of Tom Richey on the board, said term ending December 31, 2025.

WHEREAS, Section 10.02.040.A requires that the City Council confirm the appointment by resolution;

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF GALLATIN, TENNESSEE, that Ronald “Cole” Shepherd is hereby appointed to the Historic District Commission.

BE IT FURTHER RESOLVED that this Resolution shall take effect from and after its final passage the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

RONALD C. 'COLE' SHEPHERD

Professional Summary

Former Director, Financial Crimes Intelligence Unit, UBS Bank. Retired career civilian Defense Intelligence Agency professional and USAF officer with over 30 years of experience in intelligence operations primarily focused on Asia. Multiple China and Taiwan diplomatic postings. Recently responsible for day-to-day operations of 24 Defense Department units across Asia with more than 250 personnel and a \$30 million-plus non-payroll budget. Senior human intelligence (HUMINT) officer to Special Operations Joint Task Force – Afghanistan, 2016.

Skill Highlights

- | | |
|---|---------------------------------------|
| ➤ Defense HUMINT | ➤ Attaché operations |
| ➤ Intelligence operations | ➤ Exercise planner/participant |
| ➤ Set training requirements | ➤ Diplomat |
| ➤ Leader of large, complex organization | ➤ Brief Congress and senior officials |

Most Recent Professional Experience

Director, Financial Crimes Intelligence Unit	Feb 2019 - May 2021
UBS Bank	Nashville, TN

Senior Intelligence Officer	2014 to Feb 2019
Directorate of Operations, Defense Intelligence Agency	Washington DC

- Led 24 operational units across Asia with a \$30 million-plus non-payroll budget in a complex, rapidly changing environment conducting sensitive intelligence operations
- DIA's leading China expert with multiple US Embassy assignments in China and Asia
- Provided regional training to Special Forces operating in Asia
- Multiple briefings to Congress, senior government officials, and business leaders

**Senior HUMINT Officer
Special Operations Joint Task Force**

**2016
Afghanistan**

- Directed country-wide human intelligence (HUMINT) operations for Special Operations Joint Task Force – Afghanistan
- Advised Commander on sensitive intelligence operations
- Lead intelligence officer on the Personnel Recovery and Hostage Rescue Team; participated in multiple tactical rescue operations deep in Taliban and ISIS territory

**Senior Advisor, Dept of Defense
US Embassy**

**2011 – 2014
Beijing, China**

- Senior civilian defense advisor to the US Ambassador and the Country Team
- Liaison with Chinese military

**Senior Advisor, Dept of Defense
US Embassy**

**2008 – 2011
Taipei, Taiwan**

- Advised the US Ambassador and the Country Team on national defense issues
- Liaison to Taiwan military on security issues including cyber and intelligence
- Advisor to Pacific Command on regional security issues

**Air Force Attaché
US Embassy**

**2006 - 2008
Taipei, Taiwan**

- Official USAF diplomatic representative
- Senior liaison to Taiwan Air Force
- Lead USAF observer in annual Taiwan military exercises

**Air Force Attaché
US Embassy**

**2003 - 2006
Beijing, China**

- Official USAF diplomatic representative
- Liaison between Taiwan military and US government on security issues including cyber
- Lead USAF observer in annual Taiwan military exercises

**Intelligence Analyst
National Security Agency**

**2003 – 2006
Washington DC**

- Cyber operations
- Operations management

**Air Force Attaché
US Consulate**

**2006
Hong Kong**

- Official USAF diplomatic representative
- Senior liaison with HK Government Flying Service
- Lead USAF observer in annual search and rescue exercises

Additional

- Sumner County Museum Board, Gallatin Arts Council Board, former Historic Rose Mont Board, volunteer with Unlimited Potential and Shalom Zone Toys For Tots
- MA Naval Postgraduate School – national security studies
- MA University of Alabama – international relations
- Multiple HUMINT and counterintelligence professional schools/positions
- Chinese language

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

February 28, 2023

DEPARTMENT: Mayor's Office

AGENDA #

SUBJECT:

Resolution No. R2303-27 Historic District Commission Board Appointment

SUMMARY:

RECOMMENDATION:

ATTACHMENT:



Resolution
Ordinance

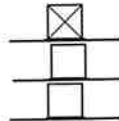


Correspondence
Contract



Bid Tabulation
Other

Approved
Rejected
Deferred



Notes:

